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SAAS ORDER FORM AND SUBSCRIPTION TERMS

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SaaS Order Form – Otterbourne College

Contract reference : CR-2025-020
Document type : SaaS Order Form
Status : signed
Date received : 2025-08-26
Date signed : 2025-09-05

PARTIES

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- (1) Northgate Systems Ltd
 - (2) Otterbourne College
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RECITALS

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- (A) New customer – 20 seats, Standard tier, 12 months. Further-education college (staff scheduling only, no student data).
 - (B) The commercial particulars are summarised below and, together with the standard terms and any negotiated amendments, form the whole agreement.

NOW IT IS AGREED as follows:

SUMMARY OF TERMS

Order form + MSA v3.

TERMS AND CONDITIONS

1. DEFINITIONS AND INCORPORATION

This Order Form incorporates the Northgate Master Services Agreement ("MSA") and, where applicable, the Data Processing Agreement ("DPA"). In the event of conflict, this Order Form prevails over the MSA to the extent of the inconsistency. "Service" means the Northgate workflow analytics platform; "Subscription Term" is the period stated in the Summary of Terms.

2. LICENCE GRANT

Subject to payment of the Fees and compliance with the MSA, Northgate grants the Customer a non-exclusive, non-transferable, revocable right during the Subscription Term for the number of named users ("Seats") and at the tier stated in the Summary of Terms to access and use the Service for its internal business purposes.

3. IMPLEMENTATION AND ACCEPTABLE USE

Northgate will make the Service available following provisioning of the Customer tenant. The Customer shall not exceed its licensed Seats, resell the Service, or use it to build a competing product, and is responsible for its users' compliance with the acceptable-use policy in the MSA.

4. FEES, INVOICING AND PAYMENT

The Customer shall pay the Fees stated in the Summary of Terms. Unless a different position is recorded in the Schedule of Negotiated Amendments, invoices are issued annually in advance and are payable within thirty (30) days of the invoice date. Overdue amounts bear interest under the Late Payment of Commercial Debts (Interest) Act 1998. Fees are exclusive of VAT.

5. TAXES

The Customer is responsible for all sales, use and value-added taxes other than taxes on Northgate's income. Where withholding applies, the Customer shall gross up so that Northgate receives the amount it would have received absent the withholding.

6. TERM, RENEWAL AND TERMINATION

The Subscription Term is as stated in the Summary of Terms. Renewal, notice and any early-termination provisions follow the MSA as varied by the Schedule of Negotiated Amendments. Either party may terminate for the other's material unremedied breach or insolvency.

7. SERVICE LEVELS AND SUPPORT

Northgate will use commercially reasonable efforts to meet the uptime service level referenced in the MSA and provide support at the Customer's tier. Service credits, calculated under the MSA, are the Customer's sole and exclusive financial remedy for any failure to meet the service level.

8. CUSTOMER DATA AND SECURITY

As between the parties the Customer owns all Customer Data. Northgate will maintain the technical and organisational security measures described in the MSA and POL-SEC-011, and will not access Customer Data except to provide and support the Service.

9. DATA PROTECTION

Where Northgate processes personal data on the Customer's behalf it acts as processor under the DPA. Each party shall comply with applicable data protection law, including the UK GDPR and the Data Protection Act 2018.

10. INTELLECTUAL PROPERTY

Northgate and its licensors retain all intellectual property rights in the Service.

Feedback provided by the Customer may be used by Northgate without restriction. No rights are granted except as expressly set out.

11. WARRANTIES

Northgate warrants that the Service will perform materially in accordance with its documentation. Except as expressly stated, all warranties, conditions and terms implied by statute or common law are excluded to the fullest extent permitted.

12. LIMITATION OF LIABILITY

Neither party excludes liability for death or personal injury caused by negligence, fraud, or any liability that cannot be limited at law. Subject to that, neither party is liable for indirect or consequential loss, loss of profit, revenue or data, and each party's aggregate liability is capped as stated in the MSA and any super-cap recorded in the Schedule of Negotiated Amendments.

13. CONFIDENTIALITY

Each party shall keep confidential the other's confidential information and the terms of this Order and use it only to perform this Order, subject to the exceptions and compelled-disclosure provisions in the MSA.

14. GENERAL

This Order and the documents it incorporates constitute the entire agreement on their subject matter. Variations must be in writing and signed. Neither party may assign without consent (not to be unreasonably withheld). A person who is not a party has no rights under the Contracts (Rights of Third Parties) Act 1999.

15. GOVERNING LAW

This Order and the MSA are governed by the laws of England & Wales and subject to the exclusive jurisdiction of the English courts, save where the Summary of Terms records an agreed alternative.

GENERAL PROVISIONS

A. INTERPRETATION

Clause headings do not affect interpretation. References to a statute or statutory provision are to it as amended, extended or re-enacted from time to time and include subordinate legislation made under it. Words in the singular include the plural and vice versa, and "including" and "in particular" are illustrative and do not limit the words that precede them.

B. ENTIRE AGREEMENT

This agreement, together with the documents it incorporates and the Schedule of Negotiated Amendments, constitutes the entire agreement between the parties on its subject matter and supersedes all prior drafts, arrangements and understandings, whether written or oral. Each party acknowledges that it has not relied on any statement or representation not expressly set out in this agreement, save that nothing limits liability for fraud or fraudulent misrepresentation.

C. VARIATION AND WAIVER

No variation of this agreement is effective unless it is in writing and signed by an authorised representative of each party. No failure or delay by a party to exercise any right or remedy is a waiver of that or any other right or remedy, and no single or partial exercise prevents any further exercise.

D. ASSIGNMENT

Neither party may assign, transfer, charge, sub-contract or deal in any other manner with any of its rights or obligations under this agreement without the prior written consent of the other (such consent not to be unreasonably withheld or delayed), save that either party may assign to an affiliate or to a successor in connection with a bona fide reorganisation or sale of the relevant business.

E. SEVERANCE

If any provision of this agreement is or becomes invalid, illegal or unenforceable, it shall be deemed modified to the minimum extent necessary to make it valid, legal and enforceable; if such modification is not possible, the relevant provision is deemed deleted. Any modification to or deletion of a provision does not affect the validity and enforceability of the rest of this agreement.

F. NOTICES

Any notice given under this agreement shall be in writing, addressed to the relevant party at its registered office or principal place of business (or such other address as notified), and delivered by hand, pre-paid first-class post or email to the address notified for that purpose. A notice is deemed received: if delivered

by hand,
on signature; if by post, at 9.00am on the second business day after posting;
and if
by email, on transmission, subject to confirmation of delivery.

G. FORCE MAJEURE

Neither party is in breach of this agreement or otherwise liable for any failure or delay in performance (other than a payment obligation) caused by an event beyond its reasonable control. The affected party shall notify the other and use reasonable endeavours to mitigate the effect. If the event continues for more than sixty (60) days, either party may terminate on written notice.

H. THIRD PARTY RIGHTS

Except as expressly stated in this agreement, a person who is not a party has no right under the Contracts (Rights of Third Parties) Act 1999 to enforce any term of this agreement, and the consent of any third party is not required to vary or rescind it.

I. DISPUTE RESOLUTION AND ESCALATION

The parties shall attempt in good faith to resolve any dispute by escalation to their respective senior representatives within fourteen (14) days of written notice of the dispute. If the dispute is not resolved within a further thirty (30) days, either party may pursue its rights and remedies, without prejudice to either party's right to seek urgent injunctive relief at any time.

J. COUNTERPARTS AND ELECTRONIC SIGNATURE

This agreement may be executed in any number of counterparts, each of which when executed constitutes an original and all of which together constitute one and the same instrument. Execution by electronic signature is valid and binding.

----- SCHEDULE OF NEGOTIATED AMENDMENTS (TRACKED CHANGES) -----

This Schedule records each redline agreed against the standard form above, the counterparty position it replaced, and the policy or legislation relied on. It forms part of this agreement and prevails over the standard wording it varies.

AMENDMENT 1 [2025-08-29] - AMENDED

Clause affected: FOIA Disclosure

(+) Negotiated amendment:

+ FOIA disclosure carve-out accepted with prior-notice obligation.

Governing basis: Freedom of Information Act 2000, s.41 & s.43

AMENDMENT 2 [2025-09-03] - AMENDED

Clause affected: Special-Category Data / DPIA

(+) Negotiated amendment:

+ Scope note added: no student records processed.
Governing basis: Data Protection Act 2018; POL-PRIV-001

EXECUTION

Executed by the parties on the dates set out below. This agreement may be signed
in
counterpart and by electronic signature.

Signed for and on behalf of Northgate Systems Ltd:

Signature: _____
Name: _____
Title: _____
Date: 2025-09-05

Signed for and on behalf of Otterbourne College:

Signature: _____
Name: _____
Title: _____
Date: 2025-09-05

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SIMULATED PLACEHOLDER CONTRACT – Northgate Systems Ltd corpus.

Generated from the contract register; not a real legal document.

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